

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 694

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO RULES OF THE ROAD; AMENDING SECTION 49-673, IDAHO CODE, TO REVISE PROVISIONS REGARDING FAILURE TO USE A SAFETY RESTRAINT AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-673, Idaho Code, be, and the same is hereby amended to read as follows:

49-673. SAFETY RESTRAINT USE. (1) Except as provided in section 49-672, Idaho Code, and subsection (2) of this section, each occupant of a motor vehicle that has a gross vehicle weight of not more than eight thousand (8,000) pounds, and that was manufactured with safety restraints in compliance with federal motor vehicle safety standard no. 208, shall have a safety restraint properly fastened about the occupant's body at all times when the vehicle is in motion.

(2) The provisions of this section shall not apply to:

(a) An occupant of a motor vehicle who possesses a written statement from a licensed physician that the occupant is unable for medical reasons to wear a safety restraint;

(b) Occupants of motorcycles, implements of husbandry and emergency vehicles;

(c) Occupants of seats of a motor vehicle in which all safety restraints are then properly in use by other occupants of that vehicle; or

(d) Mail carriers only if all vehicle regulations and safety practices of the United States postal service are adhered to.

(3) (a) A citation may be issued to:

(i) Any occupant of the motor vehicle who is age eighteen (18) years or older and fails to wear a safety restraint as required in this section; and

(ii) The operator of the motor vehicle who is age eighteen (18) years or older if any occupant under eighteen (18) years of age fails to wear a safety restraint as required in this section. For purposes of this subparagraph, it shall be deemed a single violation regardless of the number of occupants not properly restrained.

(b) A person issued a citation pursuant to this subsection shall be subject to a fine of ten dollars (\$10.00). A conviction under this subsection shall not result in violation point counts as prescribed in section 49-326, Idaho Code, nor shall such a conviction be deemed to be a moving traffic violation for the purpose of establishing rates of motor vehicle insurance charged by a casualty insurer.

1 (4) A citation may be issued to the operator of the motor vehicle if the  
2 operator is under eighteen (18) years of age and the operator or any other  
3 occupant who is under eighteen (18) years of age fails to wear a safety re-  
4 straint as required in this section. For purposes of this subsection, it  
5 shall be deemed a single violation regardless of the number of occupants not  
6 properly restrained. A person issued a citation pursuant to this subsection  
7 shall be subject to a fine of ten dollars (\$10.00), plus court costs. A con-  
8 viction under this subsection shall not result in violation point counts as  
9 prescribed in section 49-326, Idaho Code. In addition, a conviction under  
10 this subsection shall not be deemed to be a moving traffic violation for the  
11 purpose of establishing rates of motor vehicle insurance charged by a casu-  
12 alty insurer.

13 (5) Enforcement of this section by law enforcement officers may be ac-  
14 complished only as a secondary action when the operator of the motor vehicle  
15 has been detained for a suspected violation of another law.

16 (6) The department shall initiate and conduct an educational program,  
17 to the extent sufficient private donations or federal funds for this spe-  
18 cific purpose are available to the department, to encourage compliance with  
19 the provisions of this section and to publicize the effectiveness of use of  
20 safety restraints and other restraint devices in reducing risk of harm to oc-  
21 cupants of motor vehicles.

22 (7) The department shall evaluate the effectiveness of the provisions  
23 of this section and shall include a report of its findings in its annual eval-  
24 uation report on the Idaho highway safety plan, which it submits to the na-  
25 tional highway traffic safety administration and federal highway adminis-  
26 tration pursuant to 23 U.S.C. ~~section~~ 402.

27 (8) ~~The failure~~ Failure to use a safety restraint shall not be consid-  
28 ered ~~under any circumstances~~ as evidence of contributory or comparative neg-  
29 ligence, nor shall such failure be admissible as evidence in any civil action  
30 ~~with regard to negligence~~ for the purpose of limiting an injured party's dam-  
31 ages.

32 SECTION 2. An emergency existing therefor, which emergency is hereby  
33 declared to exist, this act shall be in full force and effect on and after  
34 July 1, 2026.